THE CASE OF “THE CANNIBAL COP”

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Executive Summary:

Gilberto Vale, a police officer in New York City, was accused of the intent to kidnap, torture, rape and cannibalize women. He was arrested after his wife, Kathleen Mangan, notified the authorities of his “chats” where he fantasied doing all the above to women including herself. The prosecution charged him with the conspiracy to kidnap women, based on all the internet chat histories where he delineated about kidnapping women he knew about, and the defense argued that the crimes never occurred nor there were any signs of him attempting to commit the crimes he discussed, in the online world, of committing.

On March 12, 2013, he was convicted by the jury for not only conspiring to kidnapping, in violation of 18 U.S.C § 1201(c), but also for accessing the federal database without authorization, in violation of 18 U.S.C § 1030(a)(2)(B): intentionally accessing a computer without authorization or exceeding authorized access (1).

In June 2014, Judge Paul Gardephe of federal court overturned the conviction to kidnapping because all the evidence only proved him to be *engaged* in “fantasy role-play” and they never happened in real life, nor did they prove beyond a reasonable doubt that he had “criminal intent” to carry out in real lfe. The other charge, for CFAA, remained, however. This paper will discuss the detail the case in relation to his first charge: the conspiracy to kidnapping. It will delineate what evidence was found, how it was found and the effect of those evidence in the case and the conviction.

Count One: Conspiracy to kidnapping

Gilberto Valle, a NY city police officer, dubbed as, “The cannibal Cop”, was charged with a kidnapping conspiracy because of his thousands of “internet chat histories” in a website called Dark Fetish Network (DFN) or darkfetishnet.com, a social-networking website for users with unusual interest that often included sexual abuse and other sadistic behavior , where he discussed with other members of the website about kidnapping, torturing, raping, murdering, cooking, and eating women. Many of these discussions involved his own wife and other women he knew, giving birth to the question of whether it was mere “thoughtcrime” or did he have intentions to commit such deeds. The prosecution argued that some of these discussions moved beyond fantasy and became “preparation” of real criminal activity and showed “criminal intent” as some of these discussions were “blueprints of real crime.”, The prosecution argued that these conversations were plans and had images of women he was acquainted with, and they had “specific dates” in the conversations of when and where the crimes were supposed to happen. But his defense was that all those discussions was merely “fantasy role-play” and he had no intention of carrying them out in real life. The police did not find any evidence that showed any signs of these crimes ever happening in real life and that the dates mentioned in those communications passed by without any unusual incidents and those targeted women mentioned in those communications remained unharmed and untouched.

At the time of the charge, he was living in Forest Hills, Queens, with his infant daughter and his wife, Kathleen Mangan. The case mentioned multiple times, that he had no criminal background or ever showed any acts of violence ever in his life. All that changed when Mangan, his wife, notified the authorities after finding “disturbing pictures and records of websites that Valle visited [which] included detailed emails and chats where Valle discussed butchering her and raping and torturing other women whom they knew” (3). She became suspicious of her husband in August 2012, after finding “several images of dead women” on a MacBook laptop that they shared together. She then installed “spyware that recorded the history of website visits and screenshots every five minutes (3).” She went to her parent’s house with their daughter and contacted the police in September 2012, when he was arrested and

charged with conspiracy to kidnap several women based on the content of his “chats” with other members of DFN.

The “chats” and Email History:

The accusation, and then the conviction, against Valle was based entirely on his internet activities, of which the real-time chats and email messages between him and the DFN members were critical evidence. After contacting the police, Mangan gave the keys of her house to the police as well as the consent to seize the HP laptop that the couple shared in addition to the MacBook. FBI Agent Walsh was responsible for reviewing the forensic elements of the chats, and an expert witness on trial. He divided the all the chats and emails found in the hard drive of the two laptops into two groups: one having emails and chats that he believed were “fantasy” and the other group belonged chats that he believed “reflected criminal activity” (1). According to his testimony there were “thousands” of conversations that involved discussions of “kidnapping, raping, killing, [and] cooking women” with 24 members of DFN. Only 40 of them involved “real criminal intent” with only “3 alleged co-conspirators” and the rest were all “clearly fantasy.”

Below is the conversation that followed between Agent Walsh and AUSA Hadassa Waxman on direct examination:

> WAXMAN: When you were reviewing those emails between [Valle] and the two dozen individuals, did you separate them into groups?
> WALSH: I did.
> WAXMAN: What were those groups?
> WALSH: Ones that I believe that were real and ones that I believe were fantasy.
> WAXMAN: Why did you make that separation?
> WALSH: In the ones that I believe were fantasy, the individuals said they were fantasy. In the ones that I thought were real, people were sharing ... real details of women, names, what appeared to be photographs of the women, details of past crimes and they also said that they were for real.
> WAXMAN: What caused you to make that separation between the emails you found that had realistic characteristics and those that were fantasy?
> WALSH: Only my interest in obtaining information about that real criminal activity.
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> BAUM: And how many people from the U.S. Attorney's Office were involved in that decision?
> WALSH: About two, sir.
> BAUM: So eight to 10 law enforcement officers and at least two lawyers from the U.S. Attorney's Office decided that out of 24 people that Mr. Valle chatted or emailed with[,] 21 were fantasy role-plays, is that correct?
> WALSH: Approximately. Yes, sir.

> WAXMAN: Agent Walsh, approximately how many of Officer Valle's emails and electronic chats did you review in connection with your investigation?
> WALSH: Thousands.
> WAXMAN: We just reviewed over yesterday and today about 40, is that right?
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> WALSH: That's correct, ma'am.
> WAXMAN: Why did you focus on these 40 particular communications?
> WALSH: We believed that these chats and e-mails contained elements of real crimes.
> WAXMAN: And why did you come to that conclusion?
> WALSH: They described dates, names, and activities that you would use to conduct a real crime.
> WAXMAN: And did you cast aside a certain number of emails as well?
> WALSH: Yes, ma'am.
> WAXMAN: Why did you choose not to focus on those emails?
> WALSH: Quite frankly, ma'am, they didn't seem realistic.
> WAXMAN: Why not?
> WALSH: They were clearly role-play. They used the word “fantasy” in the actual chats or emails.
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> On cross-examination, Agent Walsh admitted that the grouping decision was made by numerous agents and prosecutors.
> BAUM: Now, when you made that decision that 21 out of 24 participants with Mr. Valle were engaged in fantasy role-play, were you the only one who made that decision?
> WALSH: No, sir.
> BAUM: How many agents were involved in that decision?
> WALSH: Approximately eight to 10, sir.
> BAUM: And how many people from the U.S. Attorney's Office were involved in that decision?
> WALSH: About two, sir.
> BAUM: So [,] eight to 10 law enforcement officers and at least two lawyers from the U.S. Attorney's Office decided that out of 24 people that Mr. Valle chatted or emailed with [,] 21 were fantasy role-plays, is that correct?
> WALSH: Approximately. Yes, sir. (3)

According to an article in Case Text, Agent Walsh had been with the FBI for “seven to eight months” when he was working on Valle’s case and had no “prior experience in law enforcement, nor is there any evidence that he had any academic or other specialized training that would have him assisted him in distinguishing Internet chats and emails constituting "real" criminal activity from those reflecting fantasy role-play”(1). The defense questioned the reasoning of the disguising between real and fantasy conversations and pointed out that just because the conversations are not explicably written as “fantasy” does not make them real and that many of the elements of the real and fantasy emails were similar for example the “kidnapping” someone “using chloroform” “negotiating price.” The defense also reminded the court of Valle’s status in DFN: “I like to press the envelope, but no matter what I say, it is all fantasy” (4). Moreover, Valle and the other members “regularly set dates for each kidnapping attempt” but the dates passed by without

further communication about the attempt. The co-conspirators will pick on a new “target” and new date and new pot without ever mentioning the previous “attempt” or complaining about a failure to commit the crime. To help with the defense argument, the founder of the site, Sergey Merenkov, testified about the site being “for fantasy” and that it has “tens of thousands of members.” To prove this point, a video tour of DFN was shown to the jury where other users were involving themselves with similar activities.

To add to the defense arguments, Valle falsified all his personal information in the website as well as the last name, date of birth and other personal information of the victims he discussed to “kidnap” “sexually abuse” or “cook” in the emails and chats. In addition, many of the descriptions of the crimes were “patently preposterous” according to defense (4). For example, in one of the chat reported as real, Valle described of “kidnapping a woman, taking her in his van to his mountain cabin, torturing her using a pulley apparatus in his soundproof basement, and finally, cooking in his giant human-size oven”. The defense reported that he had” no van, no mountain cabin, no basement, no pulley apparatus, and no giant oven” (4). In other chats where his co-conspirators contributed, showed to signs of buying plane tickets or making hotel reservations even though they lived in other countries like Pakistan or India, and England.

Internet Searches:

The prosecution, in an attempt to prove “criminal intent”, provided his internet search history which contained searches such as “how to kidnap someone”, “how to make chloroform”,” kidnapped girl”, “how to restrain and cannibalize people.”

Victims or Targets

Co-Conspirators

Chat transcripts as Evidence

Count two: in violation of CFAA

Gilberto Valle was charged for violating the computer Fraud and Abuse Act because of “exceeding his authorized access”, when he accessed the OFM (Department’s Omnixx Force Mobile), a software program, for NYPD patrol officers to get into restricted databases, that contains sensitive and confidential information. There was evidence that showed that on May 31, 2012, Valle accessed OFM and obtained information about Maureen Hartigan including her DOB, address, height, eye color, restrictions on driver’s license, accident history and other information. This violates CFAA because he was intentionally accessing the information without having any valid law enforcement purpose despite the trainings and warning he received that discussed the consequences of accessing the database for non-work purpose could result in his “arrest and prosecution, and/or the termination of his employment(1).

Conclusion

The jury convicted him of conspiring to kidnap, in violation of U.S.C § 1201(c) and of conducting a computer search of a federal database that exceeded his authorized access, in violation of U.S.C § 1030(a)(2)(B), after 12 days of trial, on March 12, 2013.